

1 ENGROSSED HOUSE
2 BILL NO. 4076

By: Caldwell (Trey), Kane, and
Hill of the House

3 and

4 Hall and Haste of the
5 Senate

6
7 An Act relating to the Oklahoma Department of
8 Commerce; making an appropriation to the Pandemic
9 Relief Primary Source Revolving Fund; identifying
10 source; establishing amounts; providing purposes;
11 requiring and limiting the utilization of funds;
12 authorizing certain memorandums of understanding;
13 limiting scope; prohibiting certain memoranda terms;
14 authorizing and limiting the promulgation of rules
15 and utilization of procedures; requiring certain
16 reports and submissions to certain entities;
17 requiring appearance before certain joint committee;
18 limiting duration of certain requirements; providing
19 determination process; providing for noncodification;
20 and declaring an emergency.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. NEW LAW A new section of law not to be
23 codified in the Oklahoma Statutes reads as follows:

24 There is hereby appropriated to the Pandemic Relief Primary
Source Revolving Fund from any monies not otherwise appropriated
from the Statewide Recovery Fund established in Section 255 of Title
62 of the Oklahoma Statutes, the sum of Twenty-one Million Six
Hundred Forty Thousand Ninety-one Dollars (\$21,640,091.00) or so
much thereof as may be necessary for award by the Oklahoma

1 Department of Commerce through grants to enhance industrial parks,
2 airparks, and ports to cover costs related to water, wastewater,
3 sewer, and broadband projects eligible under the provisions of the
4 American Rescue Plan Act of 2021 that support sites or surrounding
5 communities identified by the Department as having such needs prior
6 to the passage of this act and as discussed in the Transportation,
7 Infrastructure, and Rural Development Working Group. Such funds
8 shall be utilized in a manner consistent with the recommendations
9 adopted by the Joint Committee on Pandemic Relief Funding on April
10 15, 2026.

11 SECTION 2. NEW LAW A new section of law not to be
12 codified in the Oklahoma Statutes reads as follows:

13 The Oklahoma Department of Commerce may enter into memorandums
14 of understanding with other agencies of the State of Oklahoma for
15 the auditing, documentation, evaluation, implementation, oversight,
16 reporting, and management of funds and associated efforts related to
17 the appropriations made in this act; provided, that no such
18 memorandum of understanding shall require or include, as an option
19 or condition, the direct or practical transfer or relinquishment of
20 control by the agency appropriated such funds to budget, expend,
21 allocate, and request the distribution of the funds appropriated by
22 this act.

23 SECTION 3. NEW LAW A new section of law not to be
24 codified in the Oklahoma Statutes reads as follows:

1 The Oklahoma Department of Commerce may promulgate rules,
2 utilize existing rules, establish procedures, and utilize existing
3 procedures to implement the provisions of this act; provided, such
4 rules and procedures do not conflict with or impede the provisions
5 of this act.

6 SECTION 4. NEW LAW A new section of law not to be
7 codified in the Oklahoma Statutes reads as follows:

8 A. The Oklahoma Department of Commerce shall:

9 1. Submit to the Chairs of the Joint Committee on Pandemic
10 Relief Funding, or any successor Oklahoma House of Representatives
11 or Oklahoma State Senate legislative committee or joint committee,
12 as designated by the Speaker of the Oklahoma House of
13 Representatives and the President Pro Tempore of the Oklahoma State
14 Senate:

15 a. a written or electronic quarterly report detailing the
16 budgeting, expenditure, and management of all monies
17 appropriated in this act, and

18 b. a copy of all memorandums of understanding and
19 contracts with third parties entered into by the
20 Oklahoma Department of Commerce to facilitate, assist,
21 or administer powers and duties provided to the
22 Department under the provisions of this act; and

23 2. At the Joint Committee on Pandemic Relief Funding's request,
24 appear before the Joint Committee no later than six (6) months after

1 the effective date of this act, and as otherwise requested by the
2 Joint Committee, to provide a status update regarding the
3 implementation of the provisions of this act.

4 B. The provisions of subsection A of this section shall remain
5 applicable for the period of time that monies appropriated under
6 this act are being budgeted, expended, or managed in the state. The
7 ending of such period shall be determined by the State Treasurer,
8 and shall be reported to the Governor, the Speaker of the Oklahoma
9 House of Representatives and the President Pro Tempore of the
10 Oklahoma State Senate.

11 SECTION 5. It being immediately necessary for the preservation
12 of the public peace, health or safety, an emergency is hereby
13 declared to exist, by reason whereof this act shall take effect and
14 be in full force from and after its passage and approval.

15 Passed the House of Representatives the 21st day of April, 2026.

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Presiding Officer of the House
of Representatives

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20 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate